

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	27-07-2026 11:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	27-07-2026 11:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Defence
विभाग का नाम/Department Name	Department Of Military Affairs
संगठन का नाम/Organisation Name	Indian Air Force
कार्यालय का नाम/Office Name	*****
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: vedika.42@nic.in
वस्तु श्रेणी /Item Category	Manpower Outsourcing Services - Minimum wage - Unskilled; High School; Healthcare
अनुबंध अवधि /Contract Period	1 Year(s)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	2 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
इसी तरह की सेवाओं का पिछला आवश्यक अनुभव है/Past Experience of Similar Services required	Yes
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover,Additional Doc 1 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / Financial Document Indicating Price Breakup Required	Yes
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	3.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	14

(a) ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

SAO

AIR FORCE STATION MOHANBARI, Department of Military Affairs, Indian Air Force, Ministry of Defence
(Air Force Public Fund)**UIN Number NCTGC2415P**

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
4. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.
5. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on

documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

6. Past Experience of Similar Services: The bidder must have successfully executed/completed similar Services over the last three years i.e. the current financial year and the last three financial years(ending month of March prior to the bid opening): -

1. Three similar completed services costing not less than the amount equal to 40% (forty percent) of the estimated cost; or
2. Two similar completed services costing not less than the amount equal to 50% (fifty percent) of the estimated cost; or
3. One similar completed service costing not less than the amount equal to 80% (eighty percent) of the estimated cost.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Scope of work & Job description:[1778660796.pdf](#)

Buyer to upload undertaking that Minimum Wages indicated by him during Bid Creation are as per complied with The Code on Wages Act:[1778660958.pdf](#)

Manpower Outsourcing Services - Minimum Wage - Unskilled; High School; Healthcare (2)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Skill Category	Unskilled
Educational Qualification	High School
Type of Function	Healthcare
List of Profiles	Ward Attendant (Female)
Specialization	Not Required
Post Graduation	Not Required
Specialization for PG	Not Applicable
Experience	0 to 3 Years
State	NA
Zipcode	NA
District	NA
Is the Geographical presence of the Service Provider's office required in the consignee's State	Yes
Name of states/ UT for geographical presence is required	Assam
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No
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अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Number of Resources to be hired	अतिरिक्त आवश्यकता /Additional Requirement
1	*****	*****Dibrugarh	2	• Minimum daily wage (INR) exclusive of GST : 556 • Bonus (INR per day) : 0 • EDLI (INR per day) : 0 • EPF Admin Charge (INR per day) : 0 • Optional Allowances 1 (INR per day) : 0 • Optional Allowances 2 (INR per day) : 0 • Optional Allowances 3 (INR per day) : 0 • Estimated Number of Overtime Hours per Resource per Month : 0 • Remuneration per resource per hour for Overtime Hours (Including all applicable allowance etc & excluding GST) : 0 • ESI (INR per day) : 18.07 • Provident Fund (INR per day) : 72.28 • Number of working days in a month : 26 • Tenure/ Duration of Employment (in months) : 12

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/**Buyer Added Bid Specific Terms and Conditions**

1. **Service & Support**

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

2. **Generic**

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

4. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

5. **Purchase Preference (Centre)**

Bid reserved for Make In India products: Procurement under this bid is reserved for purchase from Class 1 local suppliers as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document 50%. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

6. **Swachh Bharat Mission(SBM)**

Scoping for AMC of STP

a.The shift operators shall

- 1.Attend duty in the stipulated time and allotted shift and Operate , Maintain the Plant equipment's (STP) by following the Work Instructions and Safety Guidelines .
- 2.Check the Raw Sewage Pumps, Sludge Recirculation Pumps, Aerators(fixed/surface), Pre Final Treated Water pumps, Final Treated Water Pumps, Air blower and Electrical panel, Pressure sand filter, tank, etc. for healthiness and record in the daily log book. Record the Flow meter readings.
- 3.Periodic cleaning of Bar Screen Chamber from accumulation of solid debris flowing towards Equalization Tank.
- 4.Periodically Collect the Sample of Sewage from the Surface aerator tank and shall be transferred to Imhoff cone for measuring MLSS/MLVSS content and based on the result necessary adjustment shall be carried out for healthy operation of the plant.
- 5.Prepare Sodium Hypochlorite solution as per the instruction and adjust the flow for disinfecting the treated sewage.
- 6.Keep the Plant surroundings neat and clean by way of cleaning the spillages, overflows, clogging etc.
- 7.Check the 'Return Sludge' as applicable.
- 8.Any other activity required on SOS basis.

Caution : (i) The operator should not enter any confined space without checking the level of oxygen in indoor air.

(ii) Compliance to regulatory norms as prescribed by concern SPCB/PCC is one of the basic condition of Contract and non-negotiable.

b.The Contractor or his technical representative Shall

- 1.Visit the STP "ONCE IN A WEEK" and shall observe and report the healthiness of the plant to the Client/Site Incharge. He shall put his signature in the attendance register maintained at the plant during each visit to the plant and report to the concerned engineer.
 - 2.He/She shall be responsible for the general administration works for the operators deputed for the work.
 - 3.He/She shall be responsible for preparing and submitting the monthly invoices, entry pass of operators, Sunday and holiday entry passes, Attendance upkeep, coordination with HR department and liason during visit of state government officials for verification of documents.
 - 4.He/She shall be responsible for providing necessary guidelines for the operator regarding safety, health and environmental matters and create general awareness about company disciplines.
 - 5.He/She shall be responsible for all official correspondences with Client/Site Incharge.
 - 6.He/She shall be responsible for any failure of the operators in following the company disciplines and standing orders.
 - 7.Any other activity required on SOS basis.
- The contractor shall follow the labour laws in engaging the man power and ensure that the operators are given weekly off also to depute Operator if the Shift Operator / General shift operator is on leave / absent / compensatory off.

7. Swachh Bharat Mission(SBM)

Fixed /Floating Surface Aerator

The shift operators shall

- 1.Clear the shaft of the motor from any algae or sludge build up, simply by wiping it down.
- 2.Inspect the system for any damages caused by objects colliding with the aerator such as rocks.
- 3.Check the electrical cable for any cuts or abrasions and test the voltage.
- 4.Check that the aerators operation is normal and the motor is not producing any strange noises.
- 5.Clear the motor housing.
- 6.Clear the nozzle from any build-up.

8. Swachh Bharat Mission(SBM)

Diffused Air Aeration System

The shift operator shall

- 1.Check proper operation of the blower.
- 2.Check proper operation of PLC control and alarms.
- 3.Check and clean the air intakes on the blower enclosure.
- 4.Clean the filter on the blower.
- 5.Determine the level of sludge on the bottom of the clarifier and adjust waste cycle.
- 6.Check to ensure the air intakes are clear of debris.
- 7.Check operation of compressor and clean filter.
- 8.Check the integrity of the air line and sensor fittings in enclosure.
- 9.Check to ensure aeration is fine and even across tank.

Caution : *The operator should not enter any confined space without checking the level of oxygen in indoor air.*

9. Swachh Bharat Mission(SBM)

Chemical Dosing System for Chlorination

The shift operator shall

- 1.Check the organic matter component at low level prior to chlorine addition.
- 2.Check the residual chlorine @ 45 minutes.
- 3.Check whether the solution is correctly sucked into the injection pump;
- 4.Regularly check the diaphragm assembly for wear or breakage;
- 5.Clean the one-way valve and filter regularly.
- 6.At temperature lower than 0°C, stop using the dosing pump and drain the water in the pump;
- 7.Do not use tools to adjust pressure. The pressure only can be adjusted when there is no pressure in the

dosing pump.

8.Regularly check the liquid level in the chemical storage tank to prevent the metering pump from running without load.

9.Check whether the bolts of the pump head of the metering pump are tight and whether the seals are intact at least once every three months.

10. **Swachh Bharat Mission(SBM)**

Primary and Secondary Clarifiers with scraping mechanism

The shift operator shall

- 1.Check for the condensate accumulation in scraper drive and remove it frequently.
- 2.Lubricate primary and secondary reducers and the main gear and bearing on regular basis.
- 3.Check all oil levels weekly and should also drain and replace the main gear oil every 6 months.
- 4.Check to ensure that the torque control is functioning properly.
- 5.Lubricate all types of primary and secondary reducers, bearings and seals on regular basis and replace when necessary.

11. **Swachh Bharat Mission(SBM)**

Pressure Sand Filters

The shift operator shall

- 1.Avoid leaving the filter without water for proper maintenance of the filter material.
- 2.Check corrosion of vessel and other parts and painting be done as and when required.
- 3.Check the leakage to prevent water loss.
- 4.Check the pressure drop for taking up backwashing.
- 5.Control the inlet valve to prevent the media for coming out of vessel.
- 6.Periodical change of media needs to be done.

Caution : *The operator should not enter any confined space without checking the level of oxygen in indoor air.*

12. **Swachh Bharat Mission(SBM)**

Activated Carbon Filter

The shift operator shall

- 1.Avoid leaving the filter without water for proper maintenance of the filter material.
- 2.Check corrosion of vessel and other parts and painting be done as and when required.
- 3.Check the leakage to prevent water loss.
- 4.Check the pressure drop for taking up backwashing.
- 5.Control the inlet valve to prevent the media for coming out of vessel.
- 6.Periodical change of media needs to be done.

Caution : *The operator should not enter any confined space without checking the level of oxygen in indoor air.*

13. **Swachh Bharat Mission(SBM)**

Mechanical Filter Press

The shift operator shall

- 1.Check fittings and hydraulic lines for leaks. If you discover a leak, tighten the fittings or replace them along with the hose.
- 2.Make sure the hydraulic oil used in your filter press is clean.
- 3.Monitor oil levels and temperature when the filter press is operating.
- 4.Check the nuts and bolts on a regular basis.
- 5.Keep the press safety systems in peak condition.
- 6.Keep a log of press data including cycle time, cake consistency (edge, center), air blowdown time, filtrate clarity, etc.

Caution : *The operator should not enter any confined space without checking the level of oxygen in*

indoor air.

14. **Swachh Bharat Mission(SBM)**

Sewage Pump

The shift operator shall

1. Watch for signs of leaks, rust, or general wear and tear.
2. Listen odd noises carefully during pump cycles and accordingly take action for repair and maintenance.
3. Clean the accessible parts on daily basis.
4. Check the lubrication of the pump.
5. Check for signs of overheating, corrosion, or other forms of wear and tear.
6. Avoid to keep the loose wire during pump operation.
7. Replacing worn-out components, like seals, gaskets, or the motor itself.
8. Keep the spare parts and essential tools in store ready for any time requirement.

Caution : *The operator should not enter Sewage Pump House checking the level of oxygen in indoor air.*

15. **Swachh Bharat Mission(SBM)**

Sludge Pump

The shift operator shall

1. Check for leaks in the pump's exterior.
2. Inspect the power cable for any damage.
3. Listen if there are any strange noises or vibrations.
4. Make sure the pump is properly ventilated.
5. Keep the pump and nearby area clean to avoid debris.
6. Inspect shaft pump alignment.
7. Check the wear rings.
8. Check the bearings' temperature.
9. Perform a complete disassembly and inspection of the pump.
10. Replace worn or damaged parts.
11. Check if the pump's operation is proper.
12. Inspect the impeller.

Caution : *The operator should not enter Sludge Pump House checking the level of oxygen in indoor air.*

16. **Swachh Bharat Mission(SBM)**

Maintenance of Civil Works

The shift operator shall

1. Identify the defects or damages occurring in the structure and rectify and repair the damaged structure.
2. Check the leakage in the treatment tanks & repair if any detected.
3. Repair any developed cracks in the STP.
4. If there any waterlogging around the STP, remove it immediately.
5. Check any Dampness problem due to rain in walls, especially near electrical fittings.
6. Vegetation should be removed to stop its further growth.

Note : *Specific work item details shall be prescribed by Authority before seeking proposals on AMC .*

17. **Swachh Bharat Mission(SBM)**

Maintenance of Electrical Works

The shift operator shall

1. Take help of trained and certified workers to install, maintain, or repair electrical equipment.
2. Ensure that live-wire work is conducted by trained workers.
3. Keep the minimum approach distances outlined for specific live line voltages.
4. Ensure proper use of special safety equipment and procedures when working near, or on, exposed energized parts of an electrical system.
5. Stay at least 10 feet (3 meters) away from overhead wires during on-site activities.

- 6.Never operate electrical equipment while you are standing in water.
- 7.If working in damp locations, inspect electric cords and equipment to ensure that they are in good condition.

Note :*Specific work item details shall be prescribed by Authority before seeking proposals on AMC .*

18. **Swachh Bharat Mission(SBM)**

Maintenance of Fire Extinguisher

The shift operators shall

- 1.Maintain the record of checking and certification of all fire extinguishers.
- 2.Maintain the fire extinguisher at the proper location installed for the purpose.
- 3.Organise training to aware the use of fire extinguisher.
- 4.Organise a mock drill for fire extinguisher.
- 5.Replace/Refill the chemicals 15 days before expiry date

19. **Generic**

Consortium: In case of Contracts, wherein the seller alone does not have necessary expertise, the seller can form consortium with other sellers for submission of the bid, with one of the consortium company as leader. However, each and every member of the consortium shall be equally responsible for the complete execution of the project contract. An undertaking to this effect is to be uploaded with bid.

20. **Service & Support**

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

21. **Service & Support**

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

22. **Inspection**

Inspection of Stores by Inspection Authority of buyer or their authorised Inspecting officers / empanelled inspection agency or their representatives

An independent third party Professional Inspection Body can help buyer in mitigating buyer's risk with pre-dispatch/post-dispatch inspection in order to ensure that equipment, components , solutions and documentation conform to contractual requirements. If an institutional buyer like Defense , Railways and MHA etc desires to appoint / nominate their own inspection authority / empanelled inspection agency for inspection of stores to be supplied against the contract , buyer can select this clause indicating cost of inspection in term of percentage which is

1

%. As per the contractual provisions / law , the buyer has a right before payment or acceptance to inspect goods at any reasonable place as indicated in contract and time and in any reasonable manner. When the seller is required or authorized to send the goods to the buyer, the inspection may be after their arrival. Expenses of inspection should be borne by the buyer but may be recovered from the seller if the goods do not conform to contractual specification and are rejected. Initially seller may pay for inspection charges as applicable and get the same reimbursed from buyer if store complies to contractual specification etc , on production of payment receipt issued by inspection agency as applicable.

Seller/OEM shall send a notice in writing / e-mail to the Inspecting officer / inspection agency specifying the place where inspection is offered and the Inspecting officer shall on receipt of such notice notify to the seller the date and time when the stores would be inspected. The seller shall, at his own expenses, afford to the Inspecting officer , all reasonable facilities and such accommodation as may be necessary for satisfying himself that the stores are being and or have been manufactured in accordance with the technical particulars governing the supply . The decision of the purchaser/inspection authority regarding acceptance / rejection of consignment shall be final and binding on the seller.

The Seller shall provide, without any extra charge, all materials, tools, labour and assistance of every kind which the Inspecting officer may demand of him for any test, and examination, other than special or independent test, which he shall require to be made on the seller's premises and the seller shall bear and pay all costs attendant thereon.

The seller shall also provide , and deliver for test, free of charge, at such place other than his premises as the Inspecting officer may specify such material or stores as he may require for tests for which seller does not have the facilities or for special/ independent tests.

In the event of rejection of stores or any part thereof by the Inspecting officer basis testing outside owing to lack of test facility at sellers premises ,the seller shall, on demand, pay to the buyer the costs incurred in the inspection and/or test. Cost of test shall be assessed at the rate charged by the Laboratory to private persons for similar work.

Inspector shall have the right to put all the stores or materials forming part of the same or any part thereof to such tests as he may like fit and proper as per QAP/governing specification . The seller shall not be entitled to object on any ground whatsoever to the method of testing adopted by the Inspecting officer .. Unless otherwise provided for in the contract, the quantity of the stores or materials expended in test will be borne by seller .

Inspecting officer is the Final Authority to Certify Performance / accept the consignment . The Inspecting officer's decision as regards the rejection shall be final and binding on the seller.

The seller shall if so required at his own expense mark or permit the Inspecting officer to mark all the approved stores with a recognised Government or purchaser's mark.

23. **Generic**

Malicious Code Certificate:

The seller should upload following certificate in the bid:-

(a) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to :-

- (i) Inhibit the desires and designed function of the equipment.
- (ii) Cause physical damage to the user or equipment during the exploitation.
- (iii) Tap information resident or transient in the equipment/network.

(b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

24. **Generic**

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

25. **Generic**

WORLD BANK TERMS AND CONDITIONS: Special Terms and Conditions as defined by world bank at [click here](#) will also be applicable. APPLICABLE ONLY IN CASE OF WORLD BANK FUNDED PROJECTS.

26. **Purchase Preference (Centre)**

Procurement under this bid is reserved for purchase from Micro and Small Enterprises whose credentials are validated online through Udyog Aadhaar/URC for that product/service category. If the bidder wants to avail the reservation benefit, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service.

27. **Payment**

PAYMENT OF SALARIES AND WAGES: Service Provider is required to pay Salaries / wages of contracted staff deployed at buyer location first i.e. on their own and then claim payment from Buyer alongwith all statutory documents like, PF, ESIC etc. as well as the bank statement of payment done to staff.

28. Past Project Experience

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc. **Proof for Past Experience and Project Experience clause:** For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc.

29. Purchase Preference (Centre)

Preference to Make In India products (For bids less than 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document 50%. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

30. Purchase Preference (Centre)

Preference to Make In India products (for bids greater than 200 Crore) (can also be used in Bids less than 200 Crore but only after exemption by competent authority as defined in Deptt of Expenditure OM dated 28.5.2020): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document 50%. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

31. Generic

Products supplied shall be nontoxic and harmless to health. In the case of toxic materials, Material Safety Data Sheet may be furnished along with the material.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---